3

Australia

Contesting Coal Capital on the Liverpool Plains

On 19 February 2015, an unusual event occurred on the main street of Gunnedah, in North West New South Wales. A gathering of about sixty people assembled outside the offices of Shenhua Watermark Coal Pty Ltd, Australian subsidiary of Chinese state-owned company Shenhua Energy. The company was planning a 10-megatonnes-per-annum open-cut coal mine in the midst of the Liverpool Plains: prime agricultural land and ancestral country of the Indigenous Gomeroi people. It was a Thursday, and the office was closed, as it was Chinese New Year. Members of Red Chief Local Aboriginal Land Council (LALC) had organised a protest rally against the Shenhua mine project. The protest was supported by Front Line Action Against Coal, an anti-coal climate activist group that was blockading the site of another new mine, also in Gomeroi country, on unique biodiverse forest north of Gunnedah.

Apart from the activists, a few members of the farmers' anti-mine action group, Caroona Coal Action Group, attended, as well as a local independent political candidate who was opposing the Shenhua mine. Our research team added to the small throng. Gomeroi elders performed an Aboriginal smoking and cleansing ritual among the Chinese New Year decorations bedecking the building entrance. A number of speeches followed, with Gomeroi speakers informing those present that the mine would destroy ancient tool- and weapon-sharpening megaliths, their 'war memorial site' from the period of colonial invasion, and that it must be opposed at all costs. Andrew Pursehouse, a local farmer, also drew on war imagery, reminding the audience that Gomeroi and farmers' fathers and grandfathers had fought together during two world wars, bonding their descendants to join forces against this new enemy.

The assembly then formed up and marched chanting down the length of the main street, Aboriginal flags and signs aloft, some with Chinese characters. 'Lock the gate to coal and gas companies.' 'Don't destroy sacred land.' 'Protect cultural heritage.' 'Human rights violated.' Shopkeepers emerged, and pedestrians stopped

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in their tracks to stare at this novel spectacle. It was an impressive action, culminating in an open invitation to morning tea at the Red Chief LALC premises, at the other end of the main street. There was an atmosphere of conviviality and righteous common cause as the participants enjoyed tea and biscuits together.

The protest, led by Gomeroi people joined by farmers and environmental activists in the main street of a conservative country town, has all the features of the unstable and unlikely alliances identified by many other researchers in regional Australia when normally antagonistic or disconnected groups join forces to fight unwelcome local development. The expansion of extractivist capitalism in rural Australia brings many such alliances together (McManus and Connor 2013; Sherval, Askland et al. 2017; Vincent and Neale 2017). The forces ranged against them can be formidable: states wedded to developmentalist ideology and unsustainable growth, transnational corporations, and powerful class interests in all major political parties.

Despite the entrenched power imbalances, the outcome of these conflicts is by no means predetermined. In NSW and Queensland, coal is the largest export commodity, and large swathes of rural land, also claimed as ancestral country by Aboriginal Australians, are taken over for coal and CSG mining. The Liverpool Plains has been a prominent site of resistance against local coal projects. Residents of the region, environmental activists, State and Federal politicians, countless technical consultants and public servants, lawyers, journalists and the broader public have been engaged in the debate over coal on the Liverpool Plains in some way for more than thirteen years.

This chapter is based on our field research from 2014 to 2016, which occurred at the same time as the ethnographic research undertaken for the Coal Rush project in Lausitz and Chhattisgarh. The research puts local opponents at the centre of the analysis. We begin with an introduction to different connections to land and place, as well as class, cultural and political differences, focussing on the lives and histories of Gomeroi Traditional Owners, farmers, rural workers and town dwellers. We then analyse the arrival of coal capital in the region in the form of two large greenfield coal-mining projects. As we recount, establishing 'new coal' on the Liverpool Plains has proven immensely difficult for proponents. We examine the focal points of contestation through modes of collective action and some examples of the counter-moves against the state's efforts at enabling displacement and externalisation of coal mining's destructive effects – a point of similarity with the research project's other case studies. The chapter then considers points of intervention that opponents have created in their efforts to destabilise the coal commodity. We analyse opponents' attempts to re-regulate by means of state and national planning regulations, environmental and Indigenous heritage protection laws, as well as direct appeals to Members of Parliament. We also analyse efforts at

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articulating anti-coal stances with wider environmental and climate concerns, finding various tensions between what we have termed the 'regional exceptionalism' of some opponents and the universal challenge to coal posed by climate change. The chapter concludes with some reflections on the extent of the challenge that the various modes of opposition have posed to the state's enabling of coal capital accumulation, the ongoing uncertainty of the 'stalemate', and the social and cultural transformations that ensue from this protracted and many-sited struggle.

Places, Histories and Lives on the Liverpool Plains

In NSW, rich Permian coal deposits in the Sydney and Gunnedah Basins are found underneath some of Australia's biggest coastal cities as well as in agricultural areas. Historically mined for domestic energy and industrial use, most of the black coal produced in over thirty coal mines now goes to the transnational coal trade from Newcastle, much publicised as 'the world's largest coal export port'. The reach of the supporting infrastructure of rail haulage has expanded to inland districts as far as Narrabri in the North West of NSW.

The main ethnographic research site for the study was the Liverpool Plains, located to the west of the Great Dividing Range at 31 degrees latitude. The Liverpool Plains is a floodplain of the Namoi River, a temperate woodland zone about 270 metres above sea level. The landscape is dominated by cropping agriculture and beef cattle on properties that are often thousands of hectares in size. The rich basaltic soils, underground water flows and benign microclimate have provided farming livelihoods since early colonial days. The original owners of the land, the Gomeroi Aboriginal people (also known as Kamilaroi), sustained their way life for at least 25,000 years before dispossession by European settlers.

Gomeroi Lives

Based on early colonial reports, O'Rourke (1997) estimates that approximately 10,000 people lived in Kamilaroi country[1] around 1820, with up to 60 matrilineal descent groups, each with 150–200 members, termed *taurai* (see Figure 3.1) *Taurai* also refers to descent groups' territory, organised around creek catchments (Macdonald 2017). The usual residential grouping as in other Aboriginal societies was the hearth group – parents and dependent children. In summer months, plentiful food supplies allowed multiple hearth groups to congregate in semi-permanent settlements near water sources. Colder months saw people breaking into smaller groups to hunt and forage in back country (O'Rourke 1997: 149). As documented for the rest of Australia, people were agents of environmental change in their territories, using fire stick farming, elaborate fish traps and other systematic

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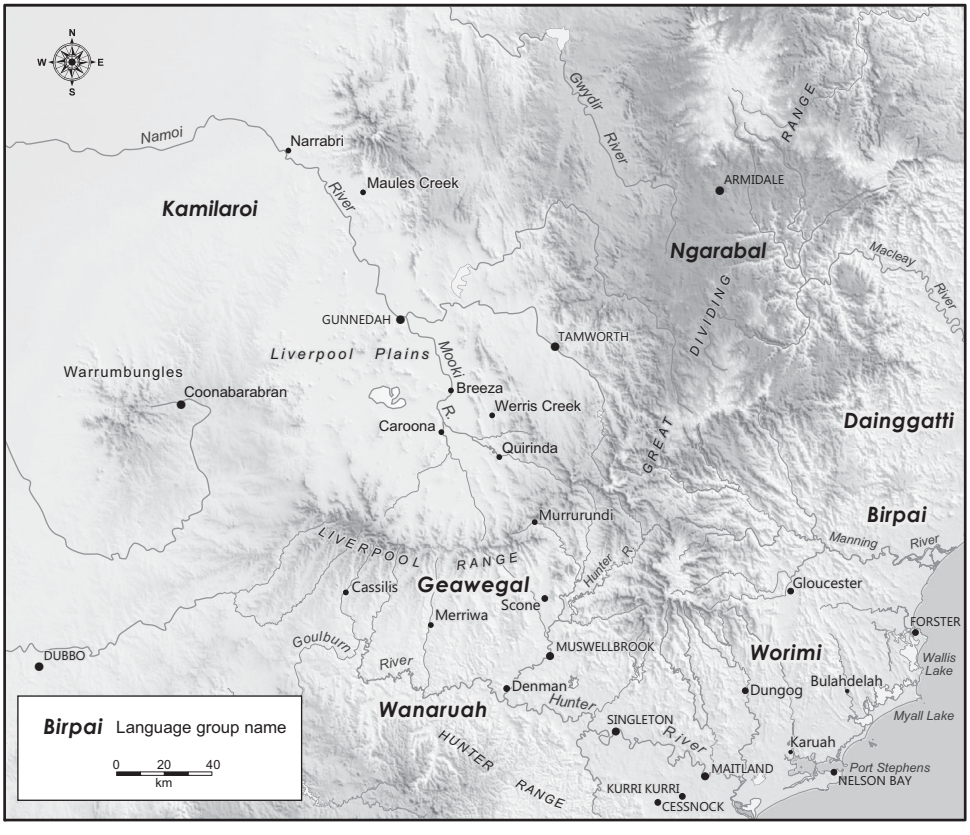

Figure 3.1 Indigenous language groups in North West NSW.
Source: prepared by Olivier Rey-Lescure, Cartolab

resource management techniques that maximised food supplies throughout the seasonal cycle (Gammage 2011; Pascoe 2014). Gomeroi people encountered Christian missionaries from the time of first contact, but they remain closely linked to the land through Dreaming connections, and have totemic bonds to living creatures, plants and many other features. Creative Ancestors include the powerful sky-dwelling Baiame, sometimes represented in the form of a giant human; Dharramulan, who is the creator of the *buura* ceremonies; and Kurrea, the water-dwelling Rainbow Serpent (O'Rourke 1997).

During the 1820s, the NSW colony began to expand as pastoralists crossed the Great Dividing Range seeking new pastures inland and relief from drought conditions. Violent land dispossession was associated with massacres of dispossessed Gomeroi people. To some extent this is documented in contemporaneous accounts, with, for instance, records of twenty killed in 1827 in Quirindi, six in 1835 near the Namoi River, both on the Liverpool Plains, a further eighty killed near Tamworth in 1836, and subsequent massacres in the wider North West region of NSW (Ryan

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2019). Lost access to food and water devastated Aboriginal populations in the early colonial period, and just as significant were the epidemics of infectious diseases – smallpox, measles and influenza – to which the people had never been exposed and which brought very high mortality rates in some regions, causing the demographic collapse of many clans and tribes. Those who survived resolutely remained in their own country, often in farm labourer employment (Goodall 2008: 28; Macdonald 2010). As in other regions, resistance was tactical, intermittently effective and combined with strategies of negotiation and land demands (Goodall 1995: 66–67; Reynolds 2006: 156).

From the 1850s, Aboriginal people were brought into a system of NSW government reserves, some under the auspices of Christian missions (Blyton et al. 2004). The establishment of the Aborigines Protection Board in 1883 initiated a period of more paternalistic policies. Living conditions and civil rights declined further during the 1890s depression and the passing of the Aborigines Protection Act in 1909 (Norman 2015: 9–10). Aboriginal people on increasingly supervised reserves experienced control over all domains of life, including removal of children to institutions. Reserves with a predominantly Gomeroi population persisted in the Liverpool Plains into the late twentieth-century era of land rights and recovery.

As a result of Aboriginal people's long struggle for land rights in NSW, the Aboriginal Land Rights Act (ALRA) was passed in 1983. Aboriginal reserves, along with Crown lands that could be demonstrated to be unused or unneeded 'for an essential public purpose', passed into the control of LALCs or became subject to land claims under the terms of the Act (Norman 2015). There are now significant assets controlled by Aboriginal communities: 'a near-billion dollar investment fund and more than a billion dollars in land holdings' (Norman 2015: 247). Obtaining new land rights is never straightforward. Thousands of claims to tracts of land, large and small, have been lodged with the NSW government since 1983, but less than half of these have been successful and most have been protracted and/or subject to political interference (Norman 2015: 108–112).[2] Since 2016, Gomeroi people have lodged claims in the federal Native Title jurisdiction, and some claimant groups are negotiating Land Use Agreements with mining and CSG companies (Norman 2015: 245).

Gomeroi people retain their ancestral relationship based on descent group affiliation to particular land and sacred sites. They are Traditional Owners, a community-recognised identity. Scripts of Indigenous politics express a strong sense of enduring Aboriginal connection to country into the future, as expressed by one Gomeroi man we spoke to:

> We've been here for over 40,000 years. I might go tomorrow but I can guarantee you that our kids and their kids are going to keep taking the fight up to protect our culture and heritage. So they should.
>
> *(Interview, Shaun 2015)*

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Farming Lives

The settler history in the western districts of NSW starts with the colonial explorers and surveyors. By the mid-1820s, explorers had found several passes through the Great Dividing Range to western NSW (Durrant 1994:10). The colony of NSW was well established and was entering a phase of pastoral expansion initially due to the growing demand for meat in the expanding colony (Denholm 2001) and in the 1830s associated with the wool boom that first established NSW as a commodity export economy (Merritt 2001). By the 1850s, the settler population of the Liverpool Plains was well established, with a mix of residents on pastoral properties and in small townships. The NSW and Victoria gold rushes in the 1850s ushered in the period from 1860 to 1890 that historians refer to as 'the long boom' (Merritt 2001). National economic growth came to a grinding halt in the early 1890s with a run by British depositors on colonial banks followed by a credit bubble and land values boom. The pastoral economy was deeply affected by the collapses of banks, land values and export commodity prices, which all contributed to the massive contraction of economic activity, sheep numbers, government spending and gross domestic product.

The Liverpool Plains was not immune from the effects. There was a dramatic decline in wool production that continued in the twentieth century. Large grazing properties were subdivided (Carter 1974: 115) as financially stressed landholders sold up. Producers diversified into mixed farming on smaller acreages as government policies of 'closer settlement' for small holders took hold (Merritt 2001). Anthea and Les, a landholder couple, now with farming grandchildren, had many vivid memories of rural life on the Plains from the 1950s – the strong social support networks of kin and neighbours, the rich social life, and the hard work. Anthea recalled the early days after the collapse of wool prices in the 1960s:

> When the wool industry collapsed, we had to get another option … And of course irrigation had come for this part of the country, but because of the subdivision of the property, some of us were more setup for other enterprises, so we decided that we'd go into thoroughbred stallions. And we started because Les had a band of broodmares, so we bought in stallions, thoroughbreds and we bred thoroughbreds for many, many years and ran a stud here. So that was another option.
>
> *(Interview, Anthea and Les 2016)*

In the late 1960s and early 1970s, prospecting for underground water yielded an enormous reward: the discovery of vast reserves of high-quality water in a complex system of layered and interconnected aquifers. The development of bore drilling technology, innovations in tractor technology and new crop varieties facilitated the move to irrigated broadacre cropping. Dorothy Durrant, in her history of the district, wrote that, as a result of the aquifers discovery and technological change,

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'A revolution in thinking occurred about what the district could grow, even without irrigation' (Durrant 1990: 9). Production remained subject to the vagaries of Australian weather, commodity demand and crop failures as well as politics. Droughts crippled production in 1965–1966, 1970, and 1980; severe floods occurred in 1971 and 1974.

Mining the socio-ecological 'gift' of the aquifers, combined with the expansion of export opportunities, was a boon for farmers in the irrigable areas of the Plains. Anthea reflected on the opportunities that opened up after the discovery of the big underground aquifers, and the good fortune of a couple of years of excellent summer rain in the early 1970s:

> We had this tremendous change. We could grow sunflowers and white sorghum, not just wheat and sheep and wool. Suddenly there was an option, the markets opened up. You know, people had gone to Japan because Japan suddenly became more interested and this big, anti-Japanese attitude[3] started to slip away.
>
> And then, we were doing markets with Africa. We were selling white sorghum to Africa. And Les's brothers got into corn, corn hadn't been grown here for god knows when, you'd only feed it to cattle or horses. You had Kellogg's and all those people, so you had all this growing of corn.
>
> *(Interview, Anthea 2016)*

Liverpool Plains agricultural production is organised on agribusiness lines, with properties typically held by family companies and trusts. Multinational agribusiness is a minority of holdings but the farming is highly capital-intensive. In contrast with earlier periods, there are fewer employment opportunities for labourers, as machines now do jobs like cotton weeding, picking and baling. With good agricultural services and access to a pool of casual workers in the towns, even large farms can now be run with a manager and two or three assistants.

Rural Workers' Lives

Prior to the era of intensive mechanisation in the 1970s, landholders were large employers of both year-round and seasonal labour. The countryside is dotted with villages, many of them once thriving small townships from the 1850s. In some places, only the name and a few derelict houses remain, while others have become small settlements, often bereft of commercial services. Some boast a pub, and there is often a park and a community hall, perhaps a church and a cemetery. Breeza, in the heart of the Liverpool Plains and the closest settlement to the proposed Shenhua mine, is one such village in our study area.

Breeza today has a stable population of about fifty. It is a sociable community, with longer-term residents and more recent arrivals living in cottages on large lots with plenty of space for trucks, sheds and animals. The main source of paid work is

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still casual farm labour and transport jobs for truck owners. Breeza residents commented that long-standing relationships with landholders are important for this:

Val: And you get the work from knowing the farmers, you develop a relationship, they know you and they give you a call.

Joan: They ring my husband up and say, 'Listen are you doing any work at the moment, can you, can you give us a week? So and so wants a week off, you know.' So he'll go and do a week, a week's work when somebody goes on holiday.

(Interview, Val and Joan 2016)

Class divisions between landowners and rural workers are marked, but exist within a quotidian framework of shared commitment to place, and values of cooperation and mutual support. Land rights and access to country are the deepest source of conflict, potential or actual, between landowners and Traditional Owners.

In Breeza, some Gomeroi residents who were born there are connected through ancestral ties to that place, which cannot be severed by property titles or mining projects. They speak of the strength of these ties, and links going back to early settlement, as in this exchange between two Gomeroi men and a neighbour:

Eric: I don't intend going. I was born and bred here and I'm not going.

Robert: And my ancestors come from here.

Val: He was born here, he's got no choice, he has to be here.

Eric: 1840s! 1840s we were here. . . . 1840s we go back.

Robert: We can go back a little further than that! (all laugh).

(Interview, Eric, Val and Robert 2016)

This question of who has the choice to leave and who has no choice but to stay is important when considering Gomeroi connection to country. Gomeroi country is not an asset that coal companies can compensate with the means to buy an equivalent asset elsewhere. Its value is incommensurable in these terms.

Town Lives

We made contacts and participated in events in several of the North West towns over the duration of the study. We selected Quirindi, the municipal centre of Liverpool Plains Shire, as the main site for the ethnographic study of town life. The shire population is 7,687 (ABS 2016) with about 3,500 people living in the town, some with ties to landholding families and established enterprises, others in short-term professional, service and commercial occupations. Quirindi has the character of a small country town that services the agricultural hinterland. The town's settlement goes back to the 1820s, and it flourished in the nineteenth-century 'long boom', particularly after the arrival of the railway in 1877.

There are many similarities between 'town and country' in the district.. There are shared party political affiliations, with most voting for the rural-based conservative National Party or for independent rural representatives. There are shared scripts of

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cultural identification with regional and rural Australia, co-dependence on rural industries, and shared participation in popular leisure pursuits and community service clubs.

At the same time, there are some significant divisions defined by large-scale landholdings of some farmers – in wealth, livelihood, sense of place, and economic opportunity. These often come to the surface in discussions of proposed coal mine developments. Gomeroi people have another experience of social difference. Their unique connection to their ancestral places, their experience of dispossession and generally low socio-economic status, set them apart from much of the social life of landholders and town. On the other hand, Quirindi and other North West towns have strong town-based organisations in the LALCs, Aboriginal Corporations and linked services. Like other Aboriginal groups in NSW, they have gained increased autonomy, corporate lands and local recognition in recent years, as part of the growing momentum for Indigenous rights in NSW and Australia (Norman 2015).

The following sections elucidate how these various participants in social life on the Liverpool Plains experienced coal capital's arrival. The actions of different groups and alliances to derive advantage or avoid harm were significantly transformed, and transforming, in the intensely political engagements of citizen protagonists, coal companies and state agencies that took place over the duration of our study, and which are ongoing.

The Arrival of Coal

As with any major economic activity, coal mining shapes patterns of social life. However, particular and often divisive issues arise when societies are confronted with new coal developments on an unprecedented scale. Conflicts over coal instigate new forms of social affiliation and social action, and may consolidate or disrupt historical political allegiances (McManus and Connor 2013; Pearse 2016). These social experiences and imagined futures are articulated in collective cultural expressions or 'scripts' that form the rationales for protagonists' claims in political contests around coal mines (McManus and Connor 2013: 166–167; Vanclay and Enticott 2011).

A number of coal projects currently operate in North West NSW, and mining has long been part of the regional economy (see Table 3.1). As coal prices rose in the mid-2000s, owners of existing coal projects in Narrabri Shire sought to take advantage of the rich coal deposits in the Gunnedah Basin. New development applications for larger-scale mines were lodged. The largest and most contentious of these has been the Maules Creek project, majority-owned by Whitehaven Coal,[4] an Australian company with a number of smaller coal mines around Narrabri. Whitehaven received approval in 2012 to produce 13 megatonnes per annum (mtpa) at Maules Creek, making it the largest producer in the North West. The

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Table 3.1. *Coal mines operating and proposed in the Gunnedah Basin*

Name DGRs issued	Majority owner	Type	Coal productionMt/yr	Status
Werris Creek 2005	Whitehaven	Thermal, open cut for export	2 for 7 years	Operating 2005
Narrabri Nth 2006	Whitehaven	Thermal, underground for export	11 for 21 years	Operating 2012; expansion to 13 Mt/yr pending
Rocglen 2006	Whitehaven	Thermal, open cut for export	1.2 for 10 years	Operating 2008
Tarrawonga 2005	Whitehaven	Thermal/coking, open cut for export	3 for 18 years	Operating 2006
Sunnyside 2006	Whitehaven	Thermal, open cut for export	1 for 5 years	Operating 2008
Boggabri 2006	Idemitsu	Thermal/coking, open cut for export	1.5 for 21 years	Operating 2006
Vickery 2010	Whitehaven	Thermal/coking, open cut for export	4.5 for 30 years	Operating 2014; extension to 10 Mt/yr pending
Maules Creek 2010	Whitehaven	Thermal/coking, open cut for export	13 for 30 years	Operating 2012
Caroona 2014	BHP Billiton	Thermal, underground for export	10 for 30 years	Withdrawn 2016
Watermark 2012	Shenhua	Thermal/coking, open cut for export	10 for 30 years	Conditional approval; pending application

mine site is near cattle farms, and part of it is located in the Leard State Forest, on the northern boundary of the Plains, and not far from the pre-existing smaller Boggabri and Tarrawonga mines.

While several other coal projects were in the NSW planning development process at the same time as Maules Creek, including the BHP Caroona and Shenhua Watermark Coal Projects discussed in the next section, Maules Creek attracted most public attention during several years leading up to its planned start of operations in 2015. Local landholders organised against the mine through the Maules Creek Community Council from 2010, joined in a broad coalition with Gomeroi Native Title Claimants and anti-coal groups including Lock the Gate Alliance and Front Line Action against Coal. They built a long-running blockade from 2012 against the proposed mine, opposing it as a threat to Gomeroi burial

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grounds and other sacred sites, to endangered species of the forest, and to land and climate. While ultimately unsuccessful, the campaign against Maules Creek dovetailed with growing awareness of the impacts of CSG extraction on underground water, and helped mobilise farmers against both coal and CSG in the wider region, led by regionally organised groups such as People of the Plains and the Northwest Alliance, as well as the national group Lock the Gate Alliance.

As discussed in the next section, organised opposition to the Caroona and Watermark mines in the fertile black soil cropping region of the Liverpool Plains, began earlier and had a different character to Maules Creek, lacking sustained alliances with climate or anti-coal organisations. Yet some of the political visibility gained by the Maules Creek campaign helped to fuel growing public disquiet at the ever-expanding coal industry in the region.

Contesting the Caroona and Watermark Mines

The arrival of coal capital in any particular location can be a quiet but significant moment in the movement towards full commodification of the underground deposits of coal. In NSW, the formal process begins with the Resources Minister identifying a zone for exploration. The department then allocates an Exploration Licence (EL) to a firm, increasingly by competitive tender (see Table 3.2). Though not required by law to directly notify landholders,[5] the NSW government contacted Liverpool Plains farmers to organise a briefing by NSW government bureaucrats in October 2005 to announce the start of coal exploration in the region. As Anthea, the farmer introduced in the previous section, recalls,

> They [government officials] rang up and booked the Caroona Hall and I said, what for? . . . they said, 'we want it for a public meeting. We're talking about opening [the Liverpool Plains] up for an exploration licence for coal.' And I said, 'You've got to be joking. I don't think that's a very good idea.' So we had a significant discussion on the telephone. And of course they went ahead, and the hall was packed [with people from] everywhere. . . . [So] this was the government coming to us to say we are going to open up this area for an exploration licence for interested parties. . . . And they told them almost to a man in the community in that October, 'This is not a good idea.'
>
> *(Interview, Anthea 2016)*

Even in this early encounter with a representative of the NSW extractive state, the key script articulating the regional exceptionalism of landowners in the mine-affected area was stressed: this is not a good place for a mine.

Despite landowners' protests, in April 2006, BHP Billiton was awarded EL6505 for the Caroona Coal Project (see Figure 3.2). Costing A$100 million, the licence permitted extraction of an estimated 10 million tonnes of black thermal coal per annum over thirty years. The mine would be long-wall (underground), as the rich

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Table 3.2. *Mining approval process in NSW*

1. **Exploration Licence:** corporations bid for Exploration Licences issued by the NSW Department of Resources. Minister issues licence subject to security bond and conditions.
2. **Development Application:** applications for mines on 'biophysical strategic agricultural land' must obtain a Gateway Panel certificate before submitting a full application to the NSW Department of Planning. Applicant submits a Conceptual Project Development Plan, meets Director-General Requirements for environmental assessment (DGRs) and undertakes an Environmental Impact Statement (EIS), including consultation with authorities and landowners, and engagement with the community. As a mine proposal, the application is designated a Major Project in the State Significant Development (SSD) category. It is put on public exhibition and submissions are published.
3. **Development Assessment**: NSW Planning Department review and recommendation. 'Controversial' applications are referred to an appointed Planning Assessment Commission (PAC) for review, including public hearings. The PAC makes a Determination Report, Minister for Planning approves with Conditions of Consent.
4. **Water Trigger:** Federal Government Independent Expert Scientific Committee (IESC) reviews water-related impacts of the proposed project under the Environmental Protection and Biodiversity Conservation (EPBC) Act. IESC reports to the Federal Minister for the Environment, who approves and determines any conditions.
5. **Federal Approval:** Minister for the Environment determines on projects defined as 'matters of national significance', including under terms of EPBC Act and Aboriginal and Torres Strait Islander Heritage Protection (ATSIHP) Act.
6. **Mining Licence:** NSW Minister for Resources determines the company passes the 'fit and proper person' test, and issues Mining Licence subject to security bond and conditions.

Hoskisson seam of the lease went up to 600 metres deep (Thompson 2008). At the time, the NSW government vision was of an almost limitless horizon of expanding revenue from coal, as prices kept hitting new highs. The NSW Premier celebrated the time-honoured scripts of state developmentalism: economic growth, increased export revenue, more jobs and new infrastructure projects:

> The commodities boom is delivering significant economic growth to Western Australia and Queensland; I am pleased NSW is in a position to share in the economic benefits of high demand for Australian commodities. . . . Large tonnages of coal from Caroona could also deliver a major boost to our export revenue given the continuing demand for coal, particularly from Asian markets. But most importantly it could have major benefits for the region through new jobs and up to $2 billion in capital works and infrastructure projects.
>
> *(Iemma in AAP 2006)*

BHP's main script in the finance news media was of an expanding horizon of profits from thermal coal exports. The BHP vice president of energy coal project

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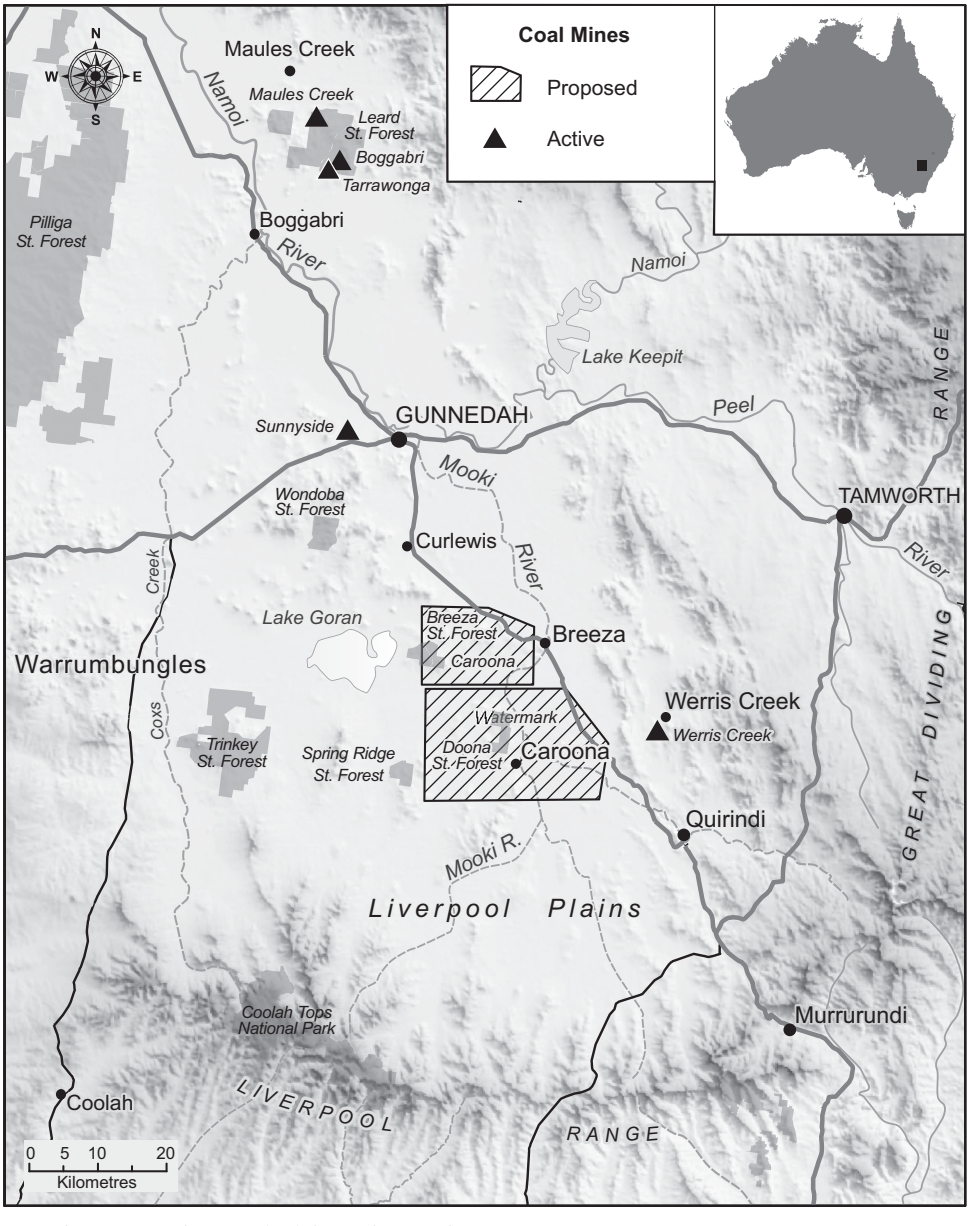

Figure 3.2 Liverpool Plains mine projects.
Source: prepared by Olivier Rey-Lescure, Cartolab

development, Phil Clark, told the press that his company had only begun analysing its first drilling results in the last few weeks, ‘But it looks like it’s a thermal coal to be used in power generation, and it looks like a very good quality thermal coal,’ he said, noting most would probably be exported (Freed 2006).

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Affected Liverpool Plains landholders and their supporters responded by forming the Caroona Coal Action Group (CCAG) in April 2006, when they realised they had a fight on their hands to stop BHP's mine (ABC Rural 2010). SOS Liverpool Plains, a women's awareness and fund-raising group to support CCAG, was formed in 2007 (ccag.org.au, accessed 31 January 2018). CCAG has been the voice of farmer opposition to mining on the Liverpool Plains for more than a decade, and during this time their main script, of Liverpool Plains exceptionalism, has been consistent, expressed in the slogan 'Wrong Mine, Wrong Place'.

Following the granting of the EL, BHP began to send geologists and a drilling team to set up test pits and drilling holes. In 2008, twenty-two landholders in the Caroona mine EL area received requests from BHP to access their property.[6] They went to the Mining Warden's Court to object and were unsuccessful (Interview, Catherine, May 2016). CCAG then blockaded BHP's drilling teams to prevent them accessing the Duddy family's property, Rossmar Park. This 615-day blockade was the first of a number of periods of heightened political mobilisation. Anthea vividly recalls the blockade, the neighbourly cooperation and the widespread support:

> We hemmed them in . . . They were supposed to give us 24 hours notice before they entered the property. And Les said, 'BHP's here.' And I said, 'But BHP can't be. They're not supposed to be here.' And he said, 'Well, they're down there digging a hole.' . . . And so we rang [our son] in Sydney, and he said, 'I'll ring Charlie [neighbour], Mum.' And he rang Charlie, and he said, 'Don't worry, mate. I'll take my machine down and I'll get Nick [son] to put his machine at your ramp.' . . . And BHP was just caught in there for months and months and months and couldn't get their stuff out.
>
> *(Interview, Anthea 2016)*

Two landholders challenged the NSW Mineral Resources Minister's decision to allocate the EL to BHP on the grounds that mortgagees had not been notified. Their case in the NSW Supreme Court was successful (ABC Rural 2010). The blockade played a significant role in delaying the progress of the BHP coal project through state and federal assessment processes, although the legislation was quickly amended to prevent further challenges (Kennedy 2017: 85–87).

The Caroona Coal Project slowly moved through several stages of the NSW government mine application process. A number of properties were acquired around Caroona. The local presence of the company, at a small office in Quirindi's main street, was never high. One woman living in town commented on the perfunctory nature of the public meetings:

> [BHP] held a number of community meetings at the RSL Club, with power point presentations reiterating already stated (in local media) edicts like 'we will only be

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mining on the gravel ridges'. Answers to questions did not elaborate or extend beyond that already presented in the presentation.

(Notes Donna, 2015)

Affected landholders continued a vigorous campaign against the mine, with several rounds of appeals and legal challenges (Connor 2016; Kennedy 2017) as well as increasing pressure tactics on conservative government MPs.

The conflict heightened as another miner arrived. Parallel to the BHP coal proposal, Shenhua Energy entered the scene. In 2008, at the height of Australia's 'resource boom', when both thermal and metallurgical coal export prices hit their giddying peak of almost US$180 per tonne, the NSW government put out a tender for EL7223, in the Watermark area of the Liverpool Plains, 35 kilometres south east of Gunnedah (RBA 2009). In August, it was announced that Shenhua Watermark Coal Pty Ltd had outbid BHP Billiton, Xstrata and at least four other coal companies (Kirkwood 2008).

The Shenhua mine proposal was of a similar magnitude to the nearby BHP coal project. However, the scale of the coal resource was identified as much larger in a government report at the time, described as 'over one billion tonnes of in situ coal resources from near surface to greater than 500 metres depth of cover', being 'of domestic and export quality thermal coal' (DPI 2009: 29). Observers were left wondering what would happen to the remaining 700 million tonnes of coal, access for which would require deeper underground mining.[7]

Controversy surrounded the Shenhua EL allocation, which was overseen by then–Minister for Natural Resources, Ian Macdonald, whose 2017 conviction for misconduct in public office over the corrupt issuing of a mining licence in the nearby Bylong Valley was overturned in 2019 pending a retrial (Thompson 2019). If the mine goes ahead, Shenhua will have paid up to $675 million to explore for coal in the rich deposits of the Gunnedah Basin.[8] This is the highest amount a company has ever paid to the NSW government for the right to extract coal. Leigh and Alex, landholders located near the Watermark mine site, expressed the growing surprise and outrage that was widespread in the rural community as one coal mine project followed another:

Leigh: We first found out that they were looking to issue a coal licence there when, in 2006, [I came across] a 'Review of Environmental Factors' somewhere on the Internet. And I printed it out and I went, 'This is what these guys are doing?!' And I actually wrote submissions at that point in time to say, 'Get out of here.' You know, this is not a suitable land use for this type of prime ag[riculture]. . . . And this community was completely caught by surprise. They had no idea that this was even in the cards . . . Caroona was done in 2006. Watermark didn't go out to the market until 2007, I think it was. It then became murmurings . . . People started to understand, but there was still no information from the government at all.

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Alex: We'd had a bit of a heads-up that, well, obviously they released Caroona and that was, like, a shock to this community here. And we all got very involved in protesting . . . You know, this just shouldn't be allowed! And then after that, Shenhua came, which was like we were really pole-axed between the ears with that one.
Leigh: So I think everyone just basically was in disbelief that. . .
Alex: That they'd do it.

(Interview, Leigh and Alex 2016)

While many town residents supported mining development for the jobs and business it would bring, the Watermark EL swelled the ranks of 'mine-affected landholders' in opposition. Through CCAG, they mounted a strong campaign on every possible front relevant to the agricultural economy, consistently articulating the importance of the 'black soil plains' to the food security of the nation and the threat to priceless water resources, as well as its 'wrong place' location. The landowners are well connected to rural industry organisations like the NSW Farmers Association (NSWFA) and Cotton Australia, and these groups were publicly supportive. Farmers never electorally rejected the National Party MPs in the regional seats, and persistently lobbied conservative politicians, despite the latter's pro-coal and anti–climate change policies. They foregrounded the impact of the two mines on local agricultural production, and sought to engage wider audiences with 'threats to food bowl' messages. The simultaneous reluctance to build formal alliances with national environmental groups so as not to alienate conservative political allies characterises the stance we have termed 'regional exceptionalism' – a pervasive element of the farmers' opposition since 2006 that builds on other successful locally based actions in earlier contests, especially in the fraught arena of NSW government water allocations (Pursehouse submission to PAC 2014). It provides a strong contrast with the 'globalising the local' strategies of the Lausitz villagers, who focussed on building strong coalitions with urban environmentalists, discussed in Chapter 4.

Protecting Land, Selling Land

By 2009, the expansion of coal and gas mining had become a focus of national politics and concerted local opposition. As coal prices stayed high, and EL applications proliferated, national political debate about the sale of prime agricultural land to foreign buyers brought Shenhua's 'buying spree' into the spotlight, and foreign investment approvals came under critical scrutiny. Debate centred on the Foreign Investment Review Board (FIRB), a non-statutory advisory body to the Australian government established in 1976 under the *Foreign Acquisitions and Takeovers Act 1975*. Land acquisitions made by Shenhua were examined by the wFIRB, and on 21 July 2009 the company was given approval for its purchases.

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Some federal MPs, including Barnaby Joyce from the National Party, at the time a Queensland senator, were vocal in federal parliament arguing for greater restrictions on foreign investment into agriculture. In response to objections, company spokespersons argued that the strategy for acquisition in the EL zone would remove uncertainty for landholders (Clayton in Cubby and Wilkinson 2009).

However, from early on, the issue was understood as a question of whether the Australian government would limit foreign ownership of agricultural land across Australia. Two Senate Inquiries were held in 2009, the first about tightening rules of FIRB approvals and the second about food production in Australia. The latter included focussed discussion on the clash between agriculture and mining on the Liverpool Plains. Shenhua declined an invitation to attend the Senate Inquiry (ABC 2009).

No changes to foreign ownership rules, or to mining policy, came from these inquiries. But the pace of mining and CSG expansion in NSW and local tensions over Shenhua's land acquisitions encouraged the NSWFA and other organisations to favour revisions to NSW land use policy to deal with conflicts between mining and agriculture. In parallel, in some parts of NSW, there were intense campaigns against drilling for CSG on agricultural land, led by farmers mobilised through Lock the Gate (LtG) Alliance. These issues became a stake in NSW party political rivalry, and in the 2011 NSW state election campaign, the conservative Liberal-National Coalition (the 'Coalition') won on a platform that included a policy of protecting agricultural land from coal and CSG. This policy commitment translated into a series of measures that were negotiated with various stakeholders into 2012.

Ring-Fencing the Region

During the years of our research, 'ring-fencing' and 'no-go' zones were well-established political demands in the black soil plains. Most notably, landowners had engaged in a successful direct action against coal developments on their land during almost two years of the Caroona blockade against BHP in 2008–2010.[9]

In 2015, one of us visited a long-established landholder family at their property near the perimeter of the proposed Shenhua mine area. They discussed tensions and challenges of campaigning against the mine. Elizabeth explained CCAG's strategy in geographic terms – the aim was to 'ring-fence' the Liverpool Plains, making it a 'no-go' zone for coal. On this point, Elizabeth's reflection turned into a broader one about political legitimacy and coalition politics: it was important for some on the executive of the CCAG not be to seen to be part of Greens campaigns to stop coal in general. In practice, the landholders' reluctance to join wider anti-coal campaigns meant CCAG chose not to accept an invitation to join a coalition with environmentalists in the LtG Alliance.

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Elizabeth shared that CCAG leaders perceived that joining with LtG would lead to rejection from Coalition politicians. Moreover, the larger goal to re-regulate coal uniformly on a state and national levels was less winnable than the ring-fencing strategy. Elizabeth and other landholders of our acquaintance didn't fully agree with CCAG's disconnection from environmentalists, or with the enduring electoral support most landholders maintained for the National Party, which had been ineffectual in changing state or federal government policies. We found that individual landholders were connected to LtG and other environmentalist campaigners for different issues and events, such as the Gomeroi protest that opened this chapter. However, when it came to efforts to protect their land assets, the focus of CCAG and the NSWFA was on state-wide policy reform capable of ring-fencing the Liverpool Plains as an exceptionally productive agricultural region.

The changes to state planning policy were brokered through an unusual alliance of the NSWFA and the Minerals Council of Australia (MCA), that in 2009 were invited by federal National Party politicians to develop a Strategic Regional Land Use Policy (SRLUP) for NSW. After two years of meetings and a change of government, the Stakeholder Reference Group broadened to include consultation with more NSW groups including representatives from the Aboriginal Land Councils, Nature Conservation Council and the Irrigators Council. Consultations broke down just prior to the 2011 state election, when the Coalition government allowed the NSW Minerals Council (NSWMC) to edit its policy draft before it was released to the NSWFA.

In 2011, the draft NSW SRLUP policy was released, introducing new scientific scrutiny of risks to alluvial soils and water resources from coal and gas mines. Not surprisingly, none of the uneasy bedfellows who had participated in its drafting was happy about the outcome. The NSWFA threatened to withdraw from the process. The NSWMC said the policy 'unnecessarily steriliz[e] the State's strategic mineral resources assets' (NSWMC 2012).

The criticisms continued when the final policy, with some amendments, was released (Denman 2012). Fiona Simson declared the policy was 'very, very disappointing' for farmers, lacking any robust legislative guarantees for protection of land and water (Fuller and Ingall 2012). The Minerals Council was dissatisfied because the policy was too robust. CEO Stephen Galilee, welcomed some rigour but commented: '[I]f you have too much regulation and new conditions and requirements as part of an assessment process you do run the risk of scaring away investment' (in Fuller and Ingall 2012).

The SRLUP created new layers to the coal and gas mine approval process, including new advising agencies and a 'Gateway' screening process[10] (see Table 3.2). However, it failed to ring-fence the Liverpool Plains. Landholders wanted the specific areas nominated in the Liverpool Plains and Upper Hunter legally protected, with an enforceable legal instrument under the State Environmental Planning Policy

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(SEPP), and not just policy highlighting the significance of the region. Landholders often remarked to us, 'It's the Gateway process that doesn't have a gate.' CCAG President Tim Duddy stated:

> Well, if it's not protected it doesn't matter how much they draw on a map; the fact of the matter is it's not protected by this policy . . . There has been a State Environmental Planning Policy in NSW for seven years that is about the preservation of strategic agricultural land, and it doesn't get used.
>
> *(Duddy in Denman 2012)*

Although the SRLUP makes frequent reference to the importance of Aboriginal cultural heritage in relation to land use, there were no new or strengthened provisions. Gomeroi people, many of whom are registered Native Title Claimants, but not private landholders, have no new protections under the policy.

The SLRUP did, however, lead to additional review of the Shenhua and BHP applications, prompting Shenhua company representatives to publicly express frustrations with the ongoing delays and new layers of regulatory requirements. They declared that the delays on the Watermark mine had informed their decision to cancel $10 billion worth of major future mining-related investments in Australia (Aston 2012). This news came out via an anonymous government informant who told the *Sunday Herald:* 'companies are screaming about delays.' The government informant was reported being sympathetic with Shenhua's reasoning for capital redirection:

> Why would an investor come to NSW, where it takes four years to get a project approved and into production, when you can do it in less than two in Africa? If [Shenhua] money is withdrawn, it sends an awfully powerful message to other investors when Australia and NSW [are] seen as a less-attractive option than Africa.
>
> *(quoted in Aston 2012)*

Land Acquisitions: Transactions and Emotions

While the diverse stakeholders were involved in the SRLUP negotiation process, Shenhua was steadily purchasing the properties it needed to start work on the mine unimpeded by landholder opponents. By June 2011, Shenhua had purchased forty-three properties covering most of the 19,500-hectare EL site, at a total cost of $213 million, with some properties purchased for more than ten times their previous sale price (Bita 2011).

In mine project localities, property acquisitions take their toll on the fabric of rural social life as a cascade of land sales creates new economic opportunities for some and potentially stranded assets for those who choose not to sell or whose property is excluded from the statutory designation of 'affected landholders'.[11]

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Landholders excluded from this category who may wish to sell because of perceived impacts may be left without an offer, anticipating a bleak future of dust, twenty-four-hour noise and light, blasting, heavy truck traffic, and a stranded asset. Some of the farmers we spoke to felt themselves close enough to the mine to be affected but not close enough to be designated as having rights to request the company buy their property. This risk of one's home and business becoming a stranded asset was a strong motivation for those opposing the mine and the myriad uncertainties it would bring.

Transfers of private land to the coal company are a significant moment in the difficult drift toward coal commodification. Landholders threatened to extend the Caroona blockade to the Watermark mine before the lease was even allocated (Colvin 2008; Thompson 2008). However, the Shenhua mine project site attracted no blockading. This was largely due to Shenhua's successful early acquisition at very high prices of all the private land in the project area, after an initial phase of negotiating access agreements with the mediation of NSWFA (ABC 2009) during the exploratory drilling stage.

The decision to sell is a subterranean source of social tension. In the two and a half years we spent visiting the region, seldom did people discuss the topic of property sales to Shenhua. Most landholders are careful to respect their peers' rights to sell, particularly in light of the very large profits on offer from coal companies, seeing property sales as individual 'business decisions' (e.g. Duddy, cited in Winestock 2015). In the words of one farmer,

> [T]he only person that ever copped so-called flack for selling was the first guy that sold, and then when everyone realised how much money he received, everyone was very forgiving. That particular man tried to sell his land for about $750,000, and I believe he probably picked up about three or four million dollars for selling that same block of dirt to the Chinese.
>
> *(Interview, David 2015)*

Landowners are more likely to be directly criticised by Gomeroi residents. 'Always was, always will be, Aboriginal land' is a resounding chant from Gomeroi and supporters at anti-coal and CSG rallies. In conversation with us, several Traditional Owners expressed the stark inequities of the compensation regime:

Robert:	If some of them [affected landowners] had said no, the mine could never have gone ahead.
Joan:	I know two people who sold out.
Interviewer:	You get disappointed in such things?
Eric:	I know that other people say, oh look at the money they got, I don't care, I don't care.
Robert:	One of the them, who got a significant amount of money, he said to me, 'Well if you don't like it, why don't you just leave?' I actually turned around and walked away from him because I was frightened of what I might say.

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Eric: I would have said, 'Well there's no coal under my land.'
Robert: I should have said because I didn't get the proper pools of money that you got. You know, we're not getting anything.

(Interview, Robert, Joan and Eric 2016)

It is rare for farmers who have sold to speak to researchers (we only met one such landholder, in the Mid-West region of NSW), and it is not very often that they speak publicly. Upon sale the landholders may be asked to sign 'gag' agreements that prevent them from speaking publicly about the transaction (Thompson 2006). These kinds of secrecy agreements are common and in the Hunter Valley have produced sharp divisions between community members (Connor et al. 2009). Farmers and house occupiers who lease property back from the company in the period of exploration and review are also constrained by gag agreements.

In the Shenhua coal project zone, there has been some evidence of tensions in contexts where landholders who have sold remain in the community, often on their former property. However, this arrangement is not chosen by everyone. One landholder who sold spoke with the *Australian Financial Review*, describing relations with his community going 'cool' after he sold. This led him to buy a new property in the North West, but at a distance from the Liverpool Plains. 'It's too hard to live there. The emotions were too high' (Clift in Winestock 2015).

There have been other occasional public statements from families who have sold. For instance, in 2010, after selling to Shenhua, members of the Bailey family shared their reasons for selling with a reporter, highlighting the fear both of social isolation and of being left with a stranded asset. John Bailey stated:

> We felt we had no choice. Neighbours who have sold surround us. We didn't want to be left on a property next to an open-cut coalmine. It's the state government that caused this by selling the mining leases.
>
> *(Bailey in Myers 2010)*

Mrs Bailey added that their sale was a difficult decision, stating: 'The money means nothing. It is tainted money. It will never bring us joy' (ibid.). From this we infer that the decisions to sell are never taken lightly, and landholders in other regions have reported the stress associated with the process of engaging with coal companies.

As the Baileys' situation illustrates, the pressure to sell intensifies as more neighbours sell. The pool of opponents in a position to refuse the mine company shrinks. Those who are no longer defending their land and water assets 'move on', both psychologically and physically, and often, like the Baileys, with some anguish about their decision. As the Caroona Coal Project languished, some landowners lost enthusiasm for the struggle and focussed on their own enterprises. In an interview with us in 2016, prior to the cancellation of the Caroona EL, one farmer commented:

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And some of the landowners that were really there in the beginning fighting the BHP licence are not so affected by the Shenhua licence. And the Shenhua licence has sort of gone ahead of the BHP licence in terms of when it's going to happen. And so those landholders have, sort of, felt that they've done their thing with the BHP, and they didn't need to keep doing it with Shenhua.

(Interview, Catherine 2016)

The cancellation of the BHP Caroona EL in 2017 removed a lot of landowners from the affected zone category. The connectivity of the underground water system, and the Shenhua mine's impact on agricultural productivity for irrigation farmers, remains a common worry but a less personally motivating concern than the prospect of remaining with a stranded property asset in a mining zone. At the same time, community concerns about the mine were never reducible to immediate local effects alone. In particular, there was widespread worry about the Shenhua and BHP projects providing a gateway for blanket mining expansion in the Liverpool Plains.

The quiet arrival of coal capital in the Liverpool Plains began with increases in international coal prices and political decisions that were invisible to landholders and residents. The subsequent tendering and issuance of licences to explore for coal, and voluntary negotiations of private property acquisitions between coal companies and landholders, began a reconfiguring of local economic and social relations. The stakes are high, and the possibility of loss and change keeps many people awake at night.

While landholders' decision to sell to the mine may be construed as an individual business decision to avert adverse consequences or to take advantage of highly inflated land values, the regional exceptionalism of the CCAG suggests something more was at stake. In their persistent efforts to re-regulate the coal commodity, NSW landholders sought to protect assets from engulfment by coal (and gas) capital by asserting an exceptional status for the region, as a highly productive 'food bowl'. The CCAG, with other regional and Gomeroi opponents, sought to assert an incommensurable local challenge to the mine, one that could not be negotiated away. In the next section we analyse the ways that opponents pursued this challenge through the state's maze of regulatory processes for approving coal mine developments.

Contesting Coal

The Watermark mine development process illuminates the politicisation of the state's role in regulating coal, and its failures in environmental and social protection. This section highlights how conflicts over coal involve community protagonists in necessary engagement with different parts of the capitalist state that are involved in regulating the coal commodity and how the horizons of these

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protagonists – their values, political actions, social relationships and expectations – take shape and shift in the development application process.

Coal-mining developments in NSW are regulated by the *Environmental Planning and Assessment Act* 1979 (NSW) (EP&A Act), the *Mining Act* 1992 (NSW), and the State Environmental Planning Policy (Mining, Petroleum Production and Extractive Industries) 2007 (NSW), colloquially known as the Mining SEPP. The EP&A Act defines coal mine proposals as 'State Significant Developments' (SSDs) in the broader category of 'Major Projects'. In a series of amendments, these developments have progressively been removed from the aegis of local government consent authorities, in a process that has facilitated privatisation and deregulation agendas by expanding Ministerial control of Major Projects (Connor 2016: 235).[12] Meanwhile, federal oversight is increasingly invoked in this and other environmental decisions in Australia, through the Minister for Environment.

Resisting the Mine, Not Opposing Coal

We found the claims being made by the CCAG were particularly influential in shaping the terms of regional debate over the Shenhua mine. Landholders are generally quick to identify the issues as hinging on risks to agricultural land, water and productivity. A dominant theme is the insistence they are 'not against mining', and 'not against coal' per se. Partly reflecting this, the CCAG does not campaign on the climate impacts of coal production, and does not have a position on the science of anthropogenic climate change, and the role of coal in it. This is not unlike other similar organisations, including LtG, for instance, which only makes glancing reference to the issue of climate change and coal production.[13] This reflected the still controversial politics of climate change in rural Australia, especially for National Party voters and the more conservative farmers.[14] The landholders' stance of regional exceptionalism did bring them into direct conflict with the state in terms of contesting the capture of state planning and regulation by mining interests, and in terms of asserting a re-balanced development model, that subordinated mining in the region to other social, environmental and economic interests, principally linked to agriculture.

In this respect, the farmers are similar to many of the 'reluctant activists' that become protagonists in contested local development issues but are reluctant to connect it to wider and often controversial societal debates (Peace et al. 2012). As noted, the landholders' key claims against the mine rested on the exceptionality of the Liverpool Plains as one of the most fertile food- and fibre-producing districts in Australia, a 'rich and rare' place, with 'the highest agricultural productivity in NSW' and some of the most fertile black earth soils, 'making up less than 1% of the nation's surface area' (CCAG 2013: Appendix). For the CCAG this simply was not a place to be mined; as one farmer put it, 'I believe that coal assets should be

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utilised only where there is a balance but in this case it is the wrong mine in the wrong place' (Juanita Hampersum, PAC submission, June 2014).

In general, this moderate stance conforms to the conservative political profile of many of the landholders opposing the mine, as drawn in one farmer's thumbnail sketch. Catherine commented: '[Most farmers are] staunch Nationals, staunch conservatives. Not particularly overly political, though. Not particularly overly anything, just all very level-headed, just getting on about our stuff (Interview, Catherine 2016).

As landholders discovered, mining capital and its state allies had no interest in maintaining the regional status quo. The objective for Shenhua, as reflected in its land acquisitions, was by definition to displace the landed incumbents. In these circumstances, ties to the conservative political elite were of little use. The Nationals remained resolutely pro-coal despite rhetorical flourishes to shore up their constituency. Ironically, as discussed below, the CCAG was better served by the independent local MP, Tony Windsor, who was willing to align with the Greens and Labor to put barriers in the way of coal capital's advance into the region.

Others advocated a more critical stance, born not of elitism but of marginality. For the Gomeroi Traditional Owners who opposed the mines (not all did), the destruction of their spiritual sites and ancestral lands, connected to cultural integrity and social well-being, is a recurring feature of their treatment in the Australian state since first contact. Gomeroi articulated a different form of opposition. Unlike the farmers, they did not argue that coal mining should happen elsewhere and instead asserted their overarching and a priori claim to Country, against the Commonwealth authority: 'We've had a gutful of the destruction of our culture; we'll rally together and march on Canberra' (Mitchell Neave in Daley, 2015).

The foundation of the Gomeroi claims resides in the uniqueness and non-convertible value of the places that constitute their cultural, spiritual and personal well-being. These places are unique in the same way that all Aboriginal places are unique. People are part of particular places, connected by birth, kinship, marriage and a host of other ties in relationships of mutual dependence of creation and sustenance in a sentient land. The long struggle of Gomeroi people predates coal's arrival by more than two centuries, in Indigenous striving for land rights and cultural survival since Australia's first settlement.

When the Caroona EL was awarded to BHP, community action was mobilised quickly. A public meeting, reportedly attended by 250 landholders and other residents, formed CCAG in April 2006. The organisation's messaging has changed over time, but the broad aims, as expressed in the words of official spokesperson Tim Duddy, are unchanged:

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> We are not radicals, we are just a group of concerned farmers who don't want the land that we grew up on to be damaged. We want these plains preserved for future generations. . . . We are not anti-development, we are anti-damage.
>
> *(Duddy, 26 September 2006, CCAG website, accessed 12 July 2007)*

CCAG's 'Call to Arms' expressed the organisation's aims of mobilising a wide support group: 'local farmers and townsfolk, community leaders, industry groups, state and federal politicians and the Australian public' (CCAG website, 26 September 2006). In fact, from the vantage point of many town residents, the campaign against the mine was mainly a farmers' affair. One woman in town reflected on the long history of anti-mining campaigns since the arrival of BHP:

> Anti-mining sentiment and opposition has been piecemeal, elitist and too little too late. The 'them and us' attitude of townies vs farmers on the Liverpool Plains is older than the mining debate and was always going to prevent a unified response. Locals have lost coal-related employment over the past two years beginning with some Werris Creek–based train drivers and mine employees. There are no winners in small regional communities.
>
> *(Notes Donna 2015)*

The major parties, which supported coal mining and CSG expansion, were largely silent. Over time, as the visibility of the issue grew, National Party MPs, such as local member Barnaby Joyce, who was elected to the New England seat in 2013, were critical of the mine, while taking no effective action. Independent and populist minority party MPs who opposed the mine have gained some political capital by targeting the failure of the National Party to address landholders' concerns. Greens Party MPs have been allies for some landholder opponents of the mine, while strongly rejected by others. The Greens had been at loggerheads with the Nationals for many years: 'Greenie' is a still used derogatory term in the locality. Yet, with the Nationals staunchly opposing climate science and backing the coal industry, there is ambivalence. Independent MP Tony Windsor represented the constituency from 2001 to 2013, and supported the Labor–Green coalition government of 2010–2013. Doors had begun to open between local farmers and environmental organisations in the campaign against coal and CSG.

Overall, the scripts of most groups engaged in the struggle did not strongly thematise a blanket opposition to coal. Crucially, the 'local' scale of political claim-making is in part shaped by the narrow opportunities available within the state's regulatory framework which focuses on single coal mine projects in review processes, not cumulative impacts or regional effects on water, landscape or climate. The project application review process provides even less scope to engage in the larger questions that landholders and Gomeroi people wanted to be raised about national food security and Indigenous heritage, respectively, nor to address environmentalists' concerns about climate change.

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The Planning Assessment Commission Review Process

Our first appreciation of social connections and divisions in the conflict over coal was at a public hearing held by the DPE Planning Assessment Commission (PAC) in Gunnedah in 2014. The PAC is a statutory body that reviews and makes determinations on State Significant Developments such as coal mine proposals.[15] PAC review panels for mine projects are committees of three people, usually retired senior public servants from the NSW government. They conduct public hearings, review documentation, undertake site visits and solicit information in meetings with the proponent, government bureaucrats and technical experts, to assist in making a determination under the terms of reference provided by the NSW Minister for Planning (see Table 3.2).

The PAC review of the Shenhua Watermark project brought Liverpool Plains opponents into a wider circle of interest groups in mining and CSG developments. Two PAC public hearings were held, with terms of reference for their review related to impacts on strategic agricultural land, water resources, health and amenity, and long-term land use. The first PAC hearing, held over two days in June 2014 at a community services club in Gunnedah, was a major event for mine opponents. It was preceded by a farmer-led rally and march down the main street of Gunnedah, with prominent yellow and black placards, 'Wrong Place, Wrong Mine' and 'No Mines on the Liverpool Plains', carried by a chanting crowd of about 150. A huge, fully loaded cotton-bale transporter truck was parked outside the Shenhua office, with slogans and messages in English and Chinese, such as 'Go home to China Shenhua. Don't destroy Australia's best farmland'.

At the hearing, there were over sixty presentations by individuals and group representatives, the majority opposing the development. Most of the presenters were landholders, as well as their local support groups and agriculture industry bodies, all with varying points of opposition to the mine. These speakers variously drew on independent scientific information, their personal histories of farming on the Liverpool Plains, and passionately worded statements about the bleak future for their communities if the anticipated risks were to materialise, especially risks to water sources. Catriona Simpson, a mixed grain and cattle farmer on the Plains, declared that co-existence of mining and agriculture was not possible:

> This is a fight about resources, about coal versus water, the environment, clean air and prime agricultural land. . . . We say ENOUGH is ENOUGH. We don't want to put at risk our future right to clean air, good health, water and rich agricultural land.
>
> *(Simpson, PAC submission June 2014)*

There were two Gomeroi people, an individual Traditional Owner and a representative of the Red Chief (Gunnedah) LALC, who both expressed concerns about destruction of Aboriginal Heritage and environment more generally. Four ENGOs – the Koala Foundation, The Wilderness Society, LtG Alliance and the NSW Nature

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Conservation Society – expressed strong objections, and scientists from the nearby Observatory informed the PAC about the threat to their work from light pollution and dust. Technical experts, some commissioned by CCAG at considerable expense, presented counter-reports to Shenhua and the government on matters such as water modelling, koala numbers and conservation, and the company's profit projections.

The themes of opponents' presentations reflected scripts already well established during more than eight years of conflict over coal mine developments in the Liverpool Plains: the value that Gomeroi people place on their ancestral country as an indissoluble part of personal and collective identity; the exceptional status of prime agricultural land and underground water sources on the Liverpool Plains, not compatible with mining; the dubious nature of the company's scientific modelling of impacts on aquifers; the productivity of the food and fibre production of the pastoral and agricultural sectors, important to food security and well-being of Australians and overseas consumers; and the long-term profitability, sustainability and viable community fabric of agriculture compared to coal mining.

Mine supporters' scripts, including town businesses and their representative bodies, miners, service clubs and charitable groups, highlighted the economic development, badly needed jobs and enhanced regional infrastructure that the mine would bring, as well as the benefits to the local community from charitable donations and other 'corporate responsibility' initiatives. Most made passing acknowledgement of the need to protect water as the key resource underpinning regional survival and prosperity. Presentations from Gunnedah and Warrumbungles Councils aired mixed views, broadly favourable of the economic development and jobs but cautious about strain on local government infrastructure, as well as damage to water and black soil productivity, and the negative impact of land offsets under biodiversity regulation.

After the Gunnedah hearing, the PAC panel considered community presentations and submissions along with a raft of other proponent and government advisory documents. The PAC report in August 2014 approved the Shenhua development application, albeit with twenty-five conditional recommendations including proposed safeguards for water sources, the black soils, human health and koalas. Aboriginal heritage concerns were ignored. Landholder opponents and their support organisations, who had been confident of the strength of the case they had made, were angry and derisive, vowing to fight on. CCAG member Rosemary Nankivell told the regional newspaper:

> It's not over yet, this is a community that has a long history of fighting . . . In this day and age, an open-cut coalmine on the best agricultural land in Australia is pretty much nearly criminal.
>
> *(Nankivell in Tyson 2014)*

In the view of the opponents, the conditions placed on approval were inadequate and unlikely to be policed or implemented with the weak regulatory apparatus in

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place. The complex hydrology of the aquifers, on which some farmers were heavily dependent, was a major source of contention. This was a point when landholders' horizons and expectations, of the regulatory process, and their prospects within it, notably shifted to a strong sense of injustice in procedure and outcomes, as Amanda Kennedy (2017) has analysed.

Both the company and the Department of Planning were strongly critical of the strict conditions laid out in the report's recommendations, which effectively become the conditions of consent for the mine's operation after final approval. In its response in October 2014, Shenhua criticised almost every recommendation and implied it was being treated unfairly. The chastened PAC went 'back to the drawing board', commissioning more water modelling and biodiversity reports, and further consultations with the company and relevant government departments.

The second round of public hearings, held in December 2014 with a different group of panel members, attracted a similar number and composition of speakers, and was followed up by site visits with landholders and Gomeroi at their request. By this time Gomeroi Traditional Owners had assembled a strong case critical of the Aboriginal Cultural Heritage Values Assessment (ACHVA) and the Aboriginal Archaeological Impact Assessment (AAIA) reports that are a mandatory part of the proponent's Environmental Impact Assessment (EIS).[16] They highlighted deep concerns about the inadequate archaeological surveys, the need to protect significant places, including burial sites, that may not have been discovered, and the harmful and culturally inappropriate removal of huge grinding stones that were in the middle of the eastern and western mining pits. The grinding grooves, which currently sit within private farm property owned by Shenhua, are worn into a rock face from tool and weapon sharpening. Some of the large slabs of sandstone are several metres across, embedded in the ground that is moist from underground springs.

In January 2015, the PAC approved the Shenhua development application. The final report acknowledged that most speakers and submissions were opposed to the mine, with the preeminent concern 'uncertainty of any potential impacts from the mine on the aquifers, which are a critical water source for agricultural enterprises in the Liverpool Plains region' (NSW Government 2015a: 4). In carefully couched bureaucratic language, most of the earlier report's recommendations were watered down in favour of the Department of Planning and Shenhua's preferences. Landholders were 'gutted', a phrase often heard in the aftermath of the approval. Tim Duddy, spokesperson for CCAG, forecast the end of agriculture on the Liverpool Plains:

The farmers of the Liverpool Plains have had their death warrants signed by the PAC and they have condemned the Liverpool Plains to be mined forever. It shows that these

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> processes, such as the Planning Assessment Commission, do not work and the water resources will be destroyed, the agricultural region will die, leaving a legacy where there is nothing, forever. People are so tied to this place and people are so angry about these processes that we have participated in for the last eight years in good faith that our assets would be protected.
>
> *(quoted in ABC NSW 2015)*

Gomeroi opponents expressed outrage at the gross disrespect for Indigenous heritage on the part of the mining company and government complicity in its destruction. In reference to grinding stones relocation, one Traditional Owner stated, 'Now every site tells a story and each site is unique in its own right. So you take stuff away from that site, it takes your integrity away from it' (Interview, Shaun 2015).

Having failed in their efforts to get a favourable outcome from the state government review process, landholders turned to the federal government's regulation of water resource risks under the EPBC Act. The Gomeroi turned their attention to the federal Aboriginal and Torres Strait Islander Heritage Protection Act 1984 (*ATSIHP Act*) (see Table 3.2).

Incommensurability, Displacement and Intervention

The task of the state in dealing with the existential threat posed by coal mining is to push through regulation that appears to transform this incommensurable challenge into the semblance of a co-benefit arrangement, creating co-existence, trade-offs and compensations. In the process, the state institutionalises displacement but, in doing so, creates new sites for intervention. In managing the social legitimacy of coal mining, ostensibly in the public interest, the state 'socialises' its risks and impacts, and ironically becomes the key site of conflict (see O'Connor 1998). While state and federal government agencies have proven important and willing supporters of the coal commodity, they are also (reluctant) agents of its de-stabilisation. Conflicts over individual coal mines like those we witnessed on the Liverpool Plains can become so politicised and significant that state practices can shift, at least temporarily, and, in doing so, begin to de-stabilise the coal commodity. This is part of an ongoing process of 're-regulation' whereby opponents aim to change the terms of state regulation in their favour – in the Liverpool Plains case, with the aim of limiting the availability of the coal resource in a particular spatial location.

For example, earlier in the chapter, we described the attempt to ring-fence the Liverpool Plains from coal and gas developments by pushing the state government to develop a more effective strategic land use policy. The outcome of the fraught three-year SRLUP process fell far below expectations, but it kept landholder

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interests centrally involved in a crucial policy reform agenda and caused further delays to mining approvals through more regulatory hurdles.

The SRLUP initiative is an example of a particular response to the socio-ecological displacements set in motion by coal commodification. Appropriation of non-human nature is essential to the process of coal capital accumulation, producing multiple kinds of disruptions and displacements. The violence of the coal commodity on the Liverpool Plains involves digging up Gomeroi heritage sites, removing habitats of endangered species and destroying the homes and economic base of many Breeza residents and landholders. If mining proceeds, a series of waste products will be created by the mine, from tailing dams filled with toxic water to greenhouse gases in coal production, not to mention the emissions associated with the export to and combustion of coal in China.

Some of these matters are formally recognised and managed by different parts of the state. As part of a series of residual social and environmental protections, multiple forms of often violent displacements are allowed, but 'controlled', as part of mines' Conditions of Consent. Many of these are evident in the Shenhua development. Gomeroi heritage sites and objects in the mining zone are subject to 'relocation', such as cutting up a huge rock face and relocating it to a public space. The management of biodiversity involves the 'translocation' of an already threatened koala population to another 'like' habitat that the company will construct. Land bought by the company as 'offsets' externalises the destruction of land value – fertility, biodiversity and sustainable use – that occurs at the mine site and can destroy forms of value at the offset site. Shenhua has purchased more than 4,000 hectares of land in the neighbouring Warrumbungles Shire. At the first PAC, the Shire manager unsuccessfully protested the 'bias in favour of the developer', citing the hardships caused by the uncompensated externalities of offsetting, including depopulation and decline in community life as working farms are sold for conservation offsets, and loss of property tax income to the shire (Loane PAC submission, June 2014).

There are big gaps in the management of other externalities: consideration of greenhouse gas emissions is barely existent in state environmental law, only in federal law; risks to underground water are subject to state regulation, but not federal. Some externalities go unrecognised: derelict farms and unkempt properties owned by the company with managers on short-term contracts; reduced access to traditional country by Gomeroi who must now negotiate with a company bureaucracy for permissions; and the psychological distress of communities riven by sell-offs.

Below we discuss three sites of social and environmental protections that became important points of intervention for opponents: Gomeroi heritage; koala habitat; and underground water resources.

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Removing, Relocating: Gomeroi Grinding Stones

Just as they have done since the nineteenth century, Gomeroi are resisting another round of enclosure and destruction of Indigenous heritage from the Shenhua mine. In an interview after the mine development approval, one Gomeroi man was critical of Shenhua as a foreign company that 'show no respect to us as the first people of this country':

> These grooves are highly significant to us, it took Europeans over 100 years to conquer us because we turned around and . . . fought a resistance against those settlers at the time. Now these areas are like retreat areas where the Aboriginal people retreated back to sharpen spears and stuff like that and then turned around to keep that fight going. Now every site tells a story and each site is unique in its own right. So you take stuff away from that site, it takes your integrity away from it.
>
> *(Interview, Shaun 2015)*

The treatment of the grinding stones became the public symbol of the chain of Aboriginal dispossession and destruction, especially at the second PAC, by which time the Red Chief Land Council had organised more effectively for the review process. The PAC panel, which had made no recommendations in its first report regarding Aboriginal heritage (which did not appear in its terms of reference), accepted an invitation from Gomeroi Elders to visit the grinding groove sites (NSW Government 2015a: 5). In its final report, the PAC expressed its sympathy for the feelings of 'the Aboriginal community', but determined it was 'in the public interest' to 'relocate' the grinding grooves:

> The Commission acknowledges the concerns and deep hurt that the Aboriginal community expressed during the visit to the grinding groove sites, and wishes to thank the community for sharing their knowledge of their history and their concerns for these sites. The Commission notes that the location of the two sites, being within the central parts of the eastern and western mining pits, makes preserving these in-situ impractical if the mine goes ahead. It is not evident how the mine could be altered or redesigned to avoid the two sites.
>
> The Commission accepts the significance and importance of these two sites and agrees they should not be destroyed. While not ideal, the Commission considers that the excavation and relocation of these two sites should be permitted as it will protect the rock grooves in perpetuity and therefore, on balance it would not be in the broader public interest to prohibit the mining.
>
> *(NSW Government 2015a: 13)*

A Heritage Management Plan, requiring a series of actions for 'protecting, monitoring and/or managing' any 'Aboriginal heritage items' found on the site, including relocation of the grinding stones, was included in the final Conditions of Consent for Shenhua's development application (NSW Government 2015b: 20–21).

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The logic of these conditions is an affront to those who understand that these objects are intrinsic parts of unique places that are integral to Gomeroi cosmological experience and cultural identity. People are deeply pained by the removal of grinding slabs from another mine near Boggabri to the town park, where they have deteriorated with moisture loss and the clambering of children and dogs. They are adamant that the proposal to remove the grinding grooves from the Shenhua mine site for the life of the mine amounts to destruction: 'Once you take it out of the ground where they are and shift it somewhere else, it's already destroyed' (Interview, Robert 2015).

Gomeroi Traditional Owners took their case into Federal jurisdiction. In 2015, they submitted an application for 'last resort' protection and preservation of their cultural sites within the Watermark project area, under Section 10 of the Aboriginal and Torres Strait Islander Aboriginal Heritage Protection (ATSIHP) Act (Razaghi et al. 2017). This was followed by a second application in 2017. An independent review was requested by the Minister for Environment, and a community consultation took place in November 2016. There was no further response until July 2019. After a brief visit to meet with Gomeroi Traditional Owners and view the sites, the new minister, Sussan Ley, rejected the application to protect the sites despite acknowledging the sites' 'immeasurable cultural values' and significance for Aboriginal people. While stating the 'difficulties in measuring or otherwise quantifying the value of Indigenous cultural heritage and in comparing the value of such to potential economic or social benefits of the mine', the decision affirmed the pre-eminent economic value of mining, yet another iteration of the dispossession that Gomeroi have experienced since first contact. The NSW EDO announced it would be acting for Gomeroi Traditional Custodian Dolly Talbot to appeal the decision based on the minister's incorrect application of the ATSIHP Act (EDO NSW 2019).

In the official process of dealing with the Gomeroi grinding stones and other Aboriginal heritage, there is no form of life, object, amenity or place that (so far) is able to establish any moral, ontological or economic primacy over the imperative of coal capital accumulation. Effectively, the coal commodity is part of a non-linear cosmology in which time can be reversed. Within the ethos of corporate capital, all risks can be managed and everything can be 'put back together again' after the mining finishes. This is accomplished through the displacement and externalisation of risk that is the foundational logic of the state's planning and environmental legislation, and its corporate manipulation.

Translocation: Koalas

The plans to relocate the Liverpool Plains colony of koalas illustrate the perverse forms of legislation that accelerate the demise of non-human sentient beings in the name of

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conservation. The Liverpool Plains is home to a significant population of koalas, under immense pressure from anthropogenic change. Since colonisation, widespread land clearing, urbanisations, road kills, dogs and introduced feral animals have threatened koala populations. In the last fifteen years, major environmental changes have led to further drops in the population, such as the Millenium drought in the ten years up to the mid-2000s and the current severe drought in much of inland NSW.

Scientists and advocates for the koalas argued at the PAC public hearings that the Department of Planning and Environment failed to consider significant impacts of the mine on a viable population of koalas, as is required by the *Environmental Planning and Assessment Act 1979* and the Threatened Species Guidelines. Part of what was contested was the inadequate baseline evidence for the koala population in question. Shenhua's EIS estimated 12,753 animals for the entire Gunnedah Shire, a gross overestimate according to independent experts. Shenhua's numbers allowed the koalas to seem less vulnerable than they actually are. The Australian Koala Foundation (AKF) estimated that there are only 800–1,300 animals in the Shire (Australian Koala Foundation 2014).

The mine development requires 847 hectares of koala habitat (a small area of Breeza State Forest amidst farmland) to be cleared (see Figure 3.2). Shenhua's presentation to the PAC assumed the company would successfully control koala relocation to an offset tract away from their accustomed home. The Koala Plan of Management proposes to encourage the koalas to move 'naturally' to a 'new, young Koala habitat' with trees planted by the company over ten years. Failing that, a forced 'translocation' program will be undertaken, where animals are captured and moved to a new location. The AKF submission included evidence that there is a mortality rate of between 30 per cent and 90 per cent in relocation programs.

The final PAC report offers cursory recognition of the plight of Australia's iconic native animal as a 'significant issue' and makes no comment on the marked disparity between company and AKF statistics on koala numbers and relocation mortality. The final report found in favour of the company, with a string of Conditions of Consent relating to planting of feed trees and a lengthy discussion of the provision of a company shuttle bus to transport employees to and from the mine site so that they would be less likely to run over the koalas while commuting.

In mid-2015, in response to the deficient PAC determination, Upper Mooki Landcare, a local environmental group, in partnership with public-interest environmental lawyers, challenged the company and Planning Department in the NSW Land and Environment court (EDO 2016). This was a judicial review case, the only form of appeal now possible to opponents under the EP&A Act. The litigants argued that the PAC had not given due consideration to the scientific evidence for koala demographic vulnerability and translocation mortality. The case was dismissed

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with the judge finding the development approval was valid. A farmer involved in the Landcare group articulated the injustice on behalf of the koalas:

> It is not enough for the Baird government and mining giant Shenhua to cross their fingers and hope that koalas survive 'translocation', which experts judge carries a high risk of failure. . . . Unleashing this mine on the remaining koalas ratchets up a notch what is already a desperate situation for the estimated 262 koalas that now live where Shenhua wants to put its mine.
>
> *(Ranclaud in NCCNSW 2016)*

'Getting the Science Right': Scaling Up Water Regulation

Neither the koala case nor the Gomeroi legal appeal under federal Indigenous heritage legislation elicited public comment from the company. However, there was a strongly negative business response when independent federal MP Tony Windsor, a Liverpool Plains farmer himself, worked with the Greens and Labor to secure an amendment to federal environmental protection law in 2013. The 'Water Trigger' amendment to the *Environment Protection and Biodiversity Conservation Act* 1999 (EPBC Act) gave new powers to approve or deny mine developments, or impose specific conditions relating to water management for mines approved by the federal Environment Minister. In circumstances when the Water Trigger applies, an Independent Expert Scientific Committee (IESC) undertakes a review of the risks to water, and plans for its management.

The Water Trigger amendment was first introduced into federal parliament in March 2013 and was passed in June of that year. It was instantly controversial, with Coalition MPs and business groups opposing it. The Minerals Council of Australia (MCA), Australian Petroleum Production and Exploration Association (APPEA) and the Business Council of Australia (BCA) opposed the reforms as being too onerous, predicting they would discourage investment in gas exports (APPEA 2013; Lloyd 2013).

Strong public criticism came from the Shenhua leadership in April 2013 at a business forum attended by the former Prime Minister Julia Gillard. Liu Xiang, chair of Shenhua Australia, addressed the forum:

> From our own perspective the regulatory environment is different today than it was when Shenhua first invested in the Watermark project in 2008 . . . At a macro level, the investment environment in Australia remains attractive. However, a degree of caution still needs to be exercised by policymakers so that unexpected changes in legislation and regulation do not impact investor sentiment about this market.
>
> *(Liu in Wen 2013)*

This statement demonstrates the extent to which Shenhua believed its key bargaining chip was Australia's claim to be 'open for business'. Allegations of sovereign

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risk, and the related invocation of capital flight, no matter how glancing, directly translate into political risk, especially for Labor governments.

The Water Trigger was also criticised by its presumed beneficiaries – the agricultural industry. The NFF distanced itself from the reform, expressing concern that it could set a precedent, leading to future regulation where the agricultural industry might become subject to the same kinds of federal government review as the mining industry.

Tony Windsor, the Water Trigger's sponsor, was the most enthusiastic advocate of the amendment, and staked his political fortunes on it. His enthusiasm was shared by landholders when their lobbying resulted in referral of the Shenhua application to the federal minister for review under the EPBC act in February 2015. The minister referred the review to the IESC, thus 'stopping the clock' on the time limits for the assessment process. Tim Duddy's response, on behalf of CCAG, was diplomatic:

> The weight on the Commonwealth Government from the Directors of the Chinese project will be enormous at this time and the stopping of the clock enables them to do a proper review of the things that are outstanding in this project. . . That is something that needs to happen and I'm very grateful that it's occurring.
>
> *(Duddy in McOwan and Thomas 2015)*

When the Shenhua mine proposal was reviewed, the IESC's advice became hotly politicised. Notwithstanding criticisms of the process, which resulted in a weak supportive report, the Federal Environment Minister Greg Hunt announced conditional approval for the mine in July 2015, citing IESC advice that risks were 'manageable'. The minister was strongly criticised in the media by landowners and their supporters. When berated by influential conservative radio host Alan Jones on the nationwide 2GB A*lan Jones Breakfast Show*, the minister declared he would take the unprecedented step of referring the Shenhua water management plan to the IESC for further review (Hunt in Mitchell 2015).

The Water Trigger, and the Biodiversity Management Plan that was also part of the Minister's conditions of approval, created more hurdles for Shenhua, setting in train a number of unresolved legitimation issues concerning the impact of mining on the black soils and the underground aquifers. Four years later, Shenhua still had not submitted the water or biodiversity management plans to the federal department for IESC review.

The three points of intervention we have discussed in this section are significant attempts by local opponents at re-regulating the coal commodity on the Liverpool Plains. While the case against the translocation of koalas was unsuccessful, the other two challenges are still unresolved, evidence of the effectiveness of opponents' persistent efforts to achieve reregulation. There is much at stake. The

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defensive counter-moves against the appropriation of land, country and livelihoods has elicited a chain of ad hoc and indecisive responses from the state.

Alliance-Building and Climate Articulation

Alliances among local groups contesting coal and CSG in North West NSW have been in place for sometime. In the Liverpool Plains, there is ongoing collaboration between CCAG and the Red Chief LALC. In the broader North West region of which the Liverpool Plains forms the southern part, a range of alliances between local groups and environmentalists began to emerge from 2010, with the formation of LtG Alliance, organised opposition to the Maules Creek mine, and the ongoing actions against CSG around Narrabri in the north. Such alliances have become a long-standing presence in the North West, for instance, with the creation of regional organisations such as the Northwest Alliance and People for the Plains, both linking farmers and environmentalists.

The campaign led by the CCAG against the Shenhua mine has generally not been conducted in alliance with environmental organisations. Some landholders, at a low ebb due to the setbacks of 2015, briefly formalised a Liverpool Plains Alliance involving the CCAG, existing local allies and national environment organisations including the Wilderness Society, 350.org and LtG. It was launched in November 2015 with a 'Harvest Festival' weekend gathering of several hundred people at Breeza on the property of one of the long-standing CCAG members and vocal mine opponent, Andrew Pursehouse (Murphy 2015) (see Figure 3.3). Speakers included the NSW Greens MP Jeremy Buckingham, Gomeroi elder Dolly Talbot, populist Tasmanian senator Jacqui Lambie and Fiona Simson, head of the MSWFA.The initiative for the Alliance came from the Liverpool Plains Youth (LPY), a group formed in November 2014 with members mainly from farming families and local agricultural businesses (Liverpool Plains Youth 2016). A proposal was developed through meetings of LPY members with activists from the Newcastle branch of the national conservation NGO, The Wilderness Society. According to Maddy Coleman, one of the founders of Liverpool Plains Youth, linking with environmentalists was 'definitely tough on a lot of people', but, as she said, the Harvest Festival had shown the Alliance was 'really powerful' (Interview, Coleman 2015).

CCAG member and landholder, Andrew Pursehouse, who hosted the Festival, confirmed farmers were 'pretty uncomfortable' with aligning with environmental organisations, but stressed the need to 'do whatever it takes'. For him the Alliance was a product of frustration with existing political channels. As he said, 'For our National Party at the moment to be not fighting this, I just cannot believe it. . . . I just can't believe that we have farmers now that are having to support the Greens' (Interview, Pursehouse 2015). Pursehouse stated that he and his fellow farmers felt

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Figure 3.3 'Protect the Plains' protest at the harvest festival, Liverpoool Plains, 2015.
Source: Jeff Tan, photographer, with permission

'abandoned', adding, 'We know we should be voting for the National Party . . . but how can you vote for a National Party that won't support protecting the Liverpool Plains.'

The Alliance had its parameters, and not all landowners supported it. At the time Pursehouse stressed farmers were leading the Alliance, and that it maintained the 'wrong mine, wrong place' stance, stressing, 'It's all about coal mining on the Liverpool Plains. It's not about all mining' (Interview, Pursehouse 2015). The place-based strategy, for 'dining, not mining', was echoed in the Harvest Festival theme, and the campaign videos emphasised repeatedly the limited life span of a coal mine in comparison with agriculture. As one CCAG landholder said, 'This land will continue to produce food for the rest of the world forever; now that mine over there is going to operate for 30 years' (Interview, Hamparsum 2015).

Despite the high energy and optimism of the Harvest Festival and media productions, a focussed, coalition-style campaign against the mine never eventuated. Like the state's ambivalent, undecided response, the would-be LP Alliance did not come together in concerted action. The Alliance website has shut down, and only occasional social media activities register on the LPY group website. This is not to say that such collective action is not possible in the future. However, the transient

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nature of landholder/Gomeroi/environmentalist coalitions is a reminder of how difficult sustained collective action on coal can be due to the many differences in play.

Yet there were substantive shifts underway. In mid-2015, several months prior to the Harvest Festival event, speeches by NSWFA president Fiona Simson stated that the association had shifted its position on climate change to accept the science and call for a 'transition from fossil fuels such as coal and gas towards more renewable energy sources' (Hannam 2015). A NSW policy was not formalised, but the following year Simson successfully led a similar initiative in her new role as head of the National Farmers Federation (NFF). A rift opened up with the National Party, which continued to reject climate science and, as noted, was generally supportive of coal mining, including the Shenhua mine. In contrast, the new NFF policy clearly acknowledged the reality of climate change, stating it 'poses a significant challenge for Australian farmers'. The policy is equivocal, however, affirming agriculture's potential to contribute to emissions reduction while aiming to protect farmers from costly carbon emissions policies, (NFF 2016).

More widely, farmers were adopting renewable energy technology, both for on-farm and household uses, and were less likely to view fossil fuel–based energy as the only available option. For at least one member of CCAG we interviewed, there had been a shift in thinking, towards renewable energy over coal-fired power:

> Look, I suppose in view of the way we're moving now with alternative energy, it's getting better and better with the technology. I guess in the past I've worried the fact that we still like to turn the lights on and we still haven't had an alternative for baseload power and a lot of the other countries haven't either. But it's wonderful to see that the alternatives are really powering along.
>
> I can see a future where we won't need coal and I guess my comment on the fact that we're not against coal mining … should be more refined to no more new coal mines. Obviously our existing coal mines are going to see us through for the next 20 years. But I guess it's no more new coal mines is probably a better way to put it.
>
> *(Interview, Pursehouse 2016)*

Another CCAG member we interviewed took the view that delaying mining development so that climate policy and renewable energy expansion would make coal less viable was an important part of the group's strategy:

> You could probably say we were trying to hold the process up a bit, to allow alternative energy to get a foothold. We could see it coming … And climate change, you know we're farmers, we don't deny that it's happening and we're very concerned about it. So we just thought more people will become educated, more people will become concerned about where we're getting our energy from and alternative energy will come and become cheaper and therefore coal won't be so in demand.
>
> *(Interview, Hamparsum 2016)*

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Such views, however, were never publicly expressed by CCAG spokespersons. Some members support climate change policy and environmental action, but climate change is a divisive issue, and climate change scepticism is common, reinforced by the National Party stance (cf. Connor 2016: 82–92, 111–117). Landowners also complained to us about the extensive delays as a period of 'limbo' during which they have not been able to make critical investments to grow their assets.

Affected Gomeroi Traditional Owners have always struggled within their much longer history of dispossession, and their alliance-building with environmental groups is directed towards protecting the integrity of their land and sacred sites. Climate change time scales were not foundational to their public stance, which emphasises a sense of continuity with the land in an enduring and qualitatively different timescape. The Gomeroi presentation to the second PAC in 2015 expressed this inter-generational connection with statements across five generations, from children, the young and middle-aged, as well as from Gomeroi Elder, Uncle Neville Sampson.

Sampson's statement strongly emphasised the 'devastating effects' of the mine on the 'social fabric', the 'glue that has made Breeza the place it is today – the people, our communities – the Aboriginal and non-Aboriginal people who give the area its identity' (Sampson, submission to PAC 2015). He linked past and present communities through the presence of the grinding grooves, in a powerful statement of their meaning and significance for today:

> Decisions are being made by people behind desks or by Ministers who have not come out on country with Elders like myself to see what it is what will be destroyed – in but one place there is an amazing legacy of our ancestors – there is a very large amazing grinding groove, it has over 100 spear-making grooves – deep and perfectly formed – this is the legacy of our great warrior community, a culturally important industrial community, a wonderful men's site, a site which has seen repeated use over many generations of Gomeroi people. The amount of time it takes to rub these marks into the stone is over many years and many users. Yet this can be destroyed and the mitigation proposed is to cut it all up and move it on.
>
> *(Sampson, submission to PAC 2015)*

Conclusion

We finished writing this book in 2020, fourteen years after the arrival of coal capital in the Liverpool Plains, and there has been no coal mining on the Liverpool Plains. Affected groups and observers alike understand the situation as a stalemate. Different state agencies and jurisdictions are implicated in various ways in the ongoing stalemate. From mid-2016, the NSW government announced it was 'in

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negotiations with Shenhua about the future of the Watermark mine project'. Shenhua's EL expired for the second time in February 2016 and, in an extraordinary delay, was not renewed until July 2018 (Furlong and Haydar 2018).

The struggle continued into 2019. In late December 2018, under the shadow of the upcoming holidays, the state government announced it would alter its development approval to allow 'pre-construction' work on the proposed mine site, pending management plans as required under the Water Trigger. The CCAG expressed outrage and followed with its own commissioned report in January 2019, which showed the Shenhua's Environmental Impact Assessment had grossly underestimated the impacts of drought on the aquifers (Anderson and Howe 2019). The report came in the context of an officially declared severe drought affecting all states. The state and federal governments had announced extensive drought relief, and the issue was high on the political agenda. The Chair of the CCAG, Susan Lyle, stated, 'Australia cannot afford to risk any water, anywhere' (in Kelly, 2019).

At one level it is remarkable that Shenhua has maintained its commitment to the project. In August 2016, BHP Billiton had taken a full compensation package to cancel the Caroona EL. However, it seems Shenhua was not seeking such an arrangement. Instead, in July 2017, the NSW government paid Shenhua $262 million for a buyback of 51.4 per cent of the EL area, on the basis that this would prevent any proposal for mining on the black soil plains, ostensibly leaving the higher-ground land for the mine (Ker 2017). CCAG spokesperson Tim Duddy claimed it as a partial victory, 'testament to the huge community effort to protect the area', while noting the Watermark mine was still on the table, despite it being 'incompatible' with agriculture (Murphy 2017). LtG spokesperson Georgina Woods was less restrained, declaring that the decision was 'half-baked and cowardly', and would not ensure an end to mining (Murphy 2017).

The partial EL buyback, which did not impinge on the mine disturbance area or restrict mining in any way, produced only further uncertainty. It was a most unusual development. The NSW state government essentially disposed itself of more than a quarter of billion dollars in public revenue with no significant effect on the mine development or impacts. Local people were not reassured, and Shenhua only reluctantly accepted the arrangement. Possibly the company viewed this as compensation to buy their silence. Certainly, there have been no further public pronouncements from Shenhua about problems in the approvals process, or about the claimed implications for investment security.

The record of thirteen years of mining projects in the Liverpool Plains without a single tonne of coal being mined shows that state agencies cannot easily do the bidding of coal companies. We chose the Liverpool Plains case because it presents an important illustration of the difficulties faced by coal capital when it seeks to displace an influential and materially powerful local elite, in this case associated

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with highly productive land and (subterranean) water. The case was always going to be a test of wills, between the two industries and their respective state advocates and industry lobby groups. At one level the opponents have democracy on their side. Many landowners are active political party members in electorates like New England where National Party MPs can be challenged. The Gomeroi Traditional Owners are supported by the NSW Aboriginal Land Council and national Indigenous rights groups. Climate change, coal and conservation activists are part of diverse networks of civil society organisations, of different types and at different scales, with strong influence in state and national arenas.

The state's efforts at managing anticipated harms from the mine have the political effect of shielding Shenhua from political responsibility, allowing it to maintain a legal identity as a socially and environmentally responsible corporate citizen, despite significant public outcry about the project outcomes. In effect, the state's environmental and social protections served a legitimation function for coal capital. Non-negotiable risks for the opponents – the social fabric, community cohesion and historical belonging, underground aquifers and threatened species, Aboriginal heritage and wider climate effects – are all interpreted as negotiable by the state, which still refuses to rule out the mine all together. However, as demonstrated in this chapter, the state has not delivered a seamless legitimacy for the project, and not all objections have been fully contained. Coal capital is by no means fully hegemonic, and can come under sustained challenge. Indeed, while the state has not said 'no' to coal capital on the Liverpool Plains, it has not (yet) said 'yes'.

Landholders, Gomeroi and other residents opposing the Shenhua mine have shared their deep feelings of anger and loss at various junctures, both publicly and in private conversations with us. Gomeroi know that heritage has already been destroyed forever by exploration activities, and as Elder Uncle Neville Sampson put it, 'Once you remove a sacred site, you can't restore it again' (Sampson in Razaghi et al. 2017). The mobilisation of these and other intrinsic values, from community and livelihood to heritage, country and environment, and the capacity to mount an incommensurable challenge to the developments, has been at the core of the continuing ability to mobilise and block mine projects. Given its intrinsic and non-negotiable logic, the struggle is at no small cost in terms of individual exhaustion, and as noted, in terms of the cultural and social distress that it brings. The stakes for those experiencing the existential crisis that the mine has brought can be very high. For years people have lain awake at night imagining scenarios of mass mobilisation and resistance – last-ditch citizens' stands against a destruction that is world-scale for those living through it.

The account in this chapter is revealing of the role of the state in enabling and legitimating the coal commodity but in the process providing avenues for mine

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opponents to create opportunities, albeit limited, for contesting the proposed new coal mines. This contradictory character of the coal–industrial complex, which we detail in the second section of this chapter, is paralleled in the other two case studies of new coal developments, discussed in Chapters 2 and 4. Insofar as the state remains ostensibly dedicated to the public interest, it will institutionalise the exercise of legitimacy, and thereby offer up, in a contradictory way, the means for contesting it.

The analysis also brings into sharp relief the spatial claims that result, including most notably the Gomeroi connection to ancestral country, and the landowners' 'wrong mine, wrong place' mobilising slogan. The use of existing political channels as well as the marshalling of Indigenous rights legislation, scientific and legal expertise, and the legitimacy of agri-industry have had a remarkable impact in terms of ousting the Caroona mine project and delaying approval for Shenhua. In one reading, this is a great victory; in another, any success achieved solely for these mines is spatially confined, and thus vulnerable. Coal and CSG projects continue to vie for strong footholds in nearby districts of the Liverpool Plains, and threaten to consign it, much like the neighbouring HunterValley, as a sacrifice zone for coal.

Despite this vulnerability, mobilisation of opposition, drawing together challengers across varied sites of resistance, over a long period of time, is itself a feat of political activation. In the specific context of the Liverpool Plains, there are sharp cultural and political differences to navigate in the debate over coal. These reflect the history of capitalist developmentalism in the region and the very different material circumstances, such as those of town residents and farmers, Indigenous people, rural society and the dominant metropolitan culture, National Party stalwarts and the few exceptions. There have been some exceptional feats of alliance-building and collective action across antagonisms, although these have been necessarily defensive. The opponents have constituted and made visible new constituencies, and have validated and privileged existing practices, especially around agriculture and Indigenous heritage. No transformative agenda for a post-coal society has emerged, although the values and themes that might underpin it are being invoked.

Questions of political agency, material social relations and lived experience have been the focus for our investigations across the three country cases in this book. At the centre of the *longue durée* of holding back coal in the Liverpool Plains is a group of resilient people who have been resourceful opponents over more than a decade of struggle. They have achieved much in terms of their capacity to frustrate and delay coal capital and in the process create the political space for alternative pathways. All this they have achieved whilst dealing with the now intergenerational uncertainty about the future loss, and the loss of future, that Shenhua's coal mine will set in train if it goes ahead.

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Notes

1 Gomeroi/Kamilaroi country is coterminous with the North West and some adjacent regions of NSW as well as south-west Queensland.
2 These statistics bear comparison with the equally poor rate of successful land rights claims by *Adivasi* people in coal-affected areas of northern Chhattisgarh, discussed in Chapter 2.
3 Anthea is referring to the aftermath of Japan's entry against Allied forces during World War II in the Asia Pacific.
4 In 2012, Whitehaven Coal merged with another Australian company, Aston Coal, original owner of Maules Creek Coal Project (www.whitehavencoal.com.au/maules-creek-mine/)
5 For many residents and landholders, newspaper notices are usually the first message received that coal mining, and the dramatic change it can bring, is on the horizon. Neither mining companies nor government are legally obliged to directly announce a new EL to landholders situated within an EL area. A notice of the EL application must be advertised in local and state-wide newspapers within forty-five days of lodgement with the Department (Mining Act (NSW), 1992: s 13A; Mining Regulations (NSW), 2010: cll. 15(11), 21(11)).
6 Landowners, who do not own the rights to mineral resources on the land, which are vested in the state, do not have the right to refuse exploration access indefinitely (Kennedy 2017: 85).
7 This remains a seriously long-term worry for farmers given their concerns about aquifer damage.
8 MacDonald announced that the agreed EL price included $300 million for the exploration licence, $175 million payment towards a long-awaited new rail crossing to Port of Newcastle through the Liverpool Ranges, and another $200 million upon the granting of a mining lease (Ryan 2008).
9 The LtG Alliance, established in 2010, became a vocal advocate for this approach among NSW and Queeenland landholders, although it was not a significant presence in the Liverpool Plains (Lock the Gate Alliance 2019).
10 The SLURP instituted a new Land and Water Commissioner, a Mining and Petroleum Gateway Panel (the Gateway Panel) and a Gateway process to scientifically assess new coal and gas mine proposals for strategic agricultural lands; an Aquifer Interference Policy; and two Codes of Practice for gas well integrity. Strategic Regional Land Use Plans were drawn up for the Upper Hunter and New England North West regions of the state. Important for the landholders, biophysical strategic agricultural land (BSAL) on the Liverpool Plains (part of the New England area) was defined in the policy as having unique soil, water and land characteristics which have high agricultural value to the state (NSW DPI 2012: 16).
11 When the state Department of Planning & Environment gives approval for a mine, the Conditions of Consent may require the company to make offers to purchase properties within the 'zone of affectation' identified as being impacted by the mine in different ways, e.g. noise and dust. The company may also be required to make an offer if any landholder in this zone requests it.
12 The aims of the Mining SEPP are 'to promote the development of significant mineral resources' and, broadly, to ensure a 'balanced use' of land for competing purposes (NSW Government 2007).
13 The Lock the Gate Alliance has a series of policy objectives. None relate to climate change except Item 7, which calls for 'Independent and rigorous research into greenhouse gas emissions from coal and unconventional gas mining to make sure they are properly and fully paid for' (Lock the Gate 2019).
14 The majority of landholders vote for the National Party, which has had an unofficial but vocal climate change denial stance for many years (Coorey 2018).
15 The PAC was established in 2008 as part of a series of major amendments to the EP&A Act between 2005 and 2011 (Connor 2016).
16 The consultants' reports (AECOM 2012; Connect for Effect 2012) draw on various historical, geological and archaeological surveys as well as the information provided by Aboriginal people who are Traditional Owners, members of LALCs within or near the mining site, and others with a claim of personal association with the area. These persons are invited to act as Registered Aboriginal Parties (RAPs) for the consultation process. In the case of the ACHVA for the Watermark project, there were 145 RAPs – a diverse and unusually large group.

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